

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Filed: _____

KIRK HUDGINS,

INDEX NO. _____

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

-against-

S U M M O N S

POLICE OFFICER MICHAEL YU (Shield #19716), POLICE
OFFICERS "JOHN DOES 1-8" (actual names unknown but
intended to be those officers of the 73rd Precinct who violated the
plaintiff's civil rights) THE CITY OF NEW YORK and THE NEW
YORK CITY POLICE DEPARTMENT,

The basis of venue is
the County in which the
cause of action arose.

Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to
serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of
this summons is complete if this summons is not personally delivered to you within the State
of New York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
January 26, 2016

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

POLICE OFFICER MICHAEL YU (Shield #19716)

73rd Precinct
1470 East New York Avenue
Brooklyn, NY 11212

THE CITY OF NEW YORK
1 Centre Street- Room 1220
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

POLICE OFFICERS "JOHN DOES 1-8"
73rd Precinct
1470 East New York Avenue
Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX NO.

KIRK HUDGINS,

Plaintiff,

VERIFIED COMPLAINT

-against-

POLICE OFFICER MICHAEL YU (Shield #19716), POLICE
OFFICERS "JOHN DOES 1-8" (actual names unknown but
intended to be those officers of the 73rd Precinct who violated the
plaintiff's civil rights) THE CITY OF NEW YORK and THE NEW
YORK CITY POLICE DEPARTMENT,

Defendants.

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified
Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, KIRK HUDGINS, at all times herein mentioned was and still is a
resident of the County of Kings, City and State of New York.
2. Defendant CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation,
incorporated pursuant to the laws of the State of New York, which operates the New York
City Police Department (hereinafter "NYPD"), and as such is the public employer of the
Defendant officers herein.
3. Defendant POLICE OFFICER MICHAEL YU (Shield #19716) was a NYPD police
officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or
employee of Defendant CITY and within the scope of his employment.
4. On or about January 27, 2013, the defendant POLICE OFFICER GARGIR was
assigned to the 73rd Precinct of the NYPD at the time of the occurrences alleged in this
complaint. He is being sued in both his individual and official capacities.

5. Defendant POLICE OFFICER "JOHN DOES 1-8" were NYPD police officers, and at all times relevant hereto, acted in that capacity as agent, servant and/or employee of Defendant CITY and within the scope of their employment..

6. On or about January 27, 2013, the defendant POLICE OFFICERS "JOHN DOES 1-8" were assigned to the 73rd Precinct of the NYPD at the time of the occurrences alleged in this complaint. They are being sued in both their individual and official capacities.

7. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all relevant times hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

8. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

9. At all relevant times, the defendant NEW YORK was responsible for the training of its police officers, and more particularly, the individually named defendant MICHAEL YU.

10. On January 27, 2013, the plaintiff KIRK HUDGINS was stopped by police officers and thrown against a police vehicle near the intersection of Herkimer and Sackman Streets. Plaintiff became nervous, ran and was thereafter struck on the leg by a police vehicle on Eastern Parkway between Fulton and Somers Street and thrown to the ground where he was maced and cuffed. Claimant was thereafter denied medical treatment for the injuries sustained for several hours.

11. On January 27, 2013, the plaintiff KIRK HUDGINS was subjected to both verbal and physical abuse by multiple members of the NYPD, including the individually named defendant MICHAEL YU.

12. On January 27, 2013, at the aforementioned location, the plaintiff was beat up by multiple members of the NYPD, including the individually named defendant herein MICHAEL YU and JOHN DOES 1-8.

13. On January 27, 2013, the plaintiff, KIRK HUDGINS was punch, kicked, stomped, brutalized and beaten prior to and while being handcuffed and forcibly detained by multiple members of the NYPD, including the individually named defendant herein MICHAEL YU.

14. On January 27, 2013, multiple members of the NYPD, including the individually named defendant herein MICHAEL YU brought plaintiff KIRK HUDGINS by ambulance to the hospital.

15. On January 27, 2013, the plaintiff KIRK HUDGINS was arrested and charged with Penal Law §§ 205.30 and 215.50 (3). All charges were dismissed.

16. Based upon information and belief, the officers, including the individually named defendant MICHAEL YU possessed no warrants, had no permission nor consent, nor any legal justification for their actions.

17. On January 27, 2013, plaintiff KIRK HUDGINS was caused to suffer severe personal injuries.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KIRK HUDGINS
Pursuant to § 1983 (FALSE ARREST)

18. Paragraphs 1 through 17 of this complaint are hereby realleged and incorporated by reference herein.

19. That Defendants had neither valid evidence for the arrest of KIRK HUDGINS nor legal cause or excuse to seize and detain him.

20. That in detaining KIRK HUDGINS and without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. KIRK HUDGINS was but one of those persons.

21. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

22. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.

23. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of KIRK HUDGINS's rights alleged herein.

24. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of KIRK HUDGINS's rights, subjected KIRK HUDGINS to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

25. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of KIRK HUDGINS's civil rights, including but not limited to the right to be free from being falsely arrested.

26. By reason of the foregoing, KIRK HUDGINS suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KIRK HUDGINS
Pursuant to §1983 (EXCESSIVE FORCE)

27. Paragraphs 1 through 25 are hereby realleged and incorporated by reference herein.

28. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

29. That Defendants had no legal cause or reason to use excessive force in effectuating KIRK HUDGINS's arrest or after KIRK HUDGINS was arrested and in custody.

30. That Defendants violated KIRK HUDGINS's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.

31. That at the time of the arrest or while in custody, KIRK HUDGINS did not pose a threat to the safety of the arresting officers.

32. That KIRK HUDGINS was not actively resisting arrest or attempting to evade arrest.

33. That Defendant CITY, through its officers, agents, and employees, unlawfully subjected KIRK HUDGINS to excessive force while effectuating his arrest.

34. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

35. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of KIRK HUDGINS's rights, subjected KIRK HUDGINS to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

36. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of KIRK HUDGINS's civil rights, including but not limited to the right to be free from the application of excessive force.

37. That upon information and belief, in 2010, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.

38. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

39. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

40. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of KIRK HUDGINS's rights alleged herein.

41. By reason of the foregoing, KIRK HUDGINS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

44. The aforementioned use of excessive force in effectuating the wrongful arrest and detention of the plaintiff by MICHAEL YU and JOHN DOES 1-8, violated the plaintiff's constitutional rights.

45. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

46. Each and all of the acts of the defendants were done by the defendants, each of

them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of the Bronx, and under the authority of their office as police officers for such city and county.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KIRK HUDGINS
Pursuant to § 1983 (MALICIOUS PROSECUTION)

47. Paragraphs 1 through 45 are hereby realleged and incorporated by reference herein.

48. That Defendants, with malicious intent, arrested KIRK HUDGINS and initiated a criminal proceeding despite the knowledge that KIRK HUDGINS had committed no crime.

49. That all charges against KIRK HUDGINS were terminated in his favor.

50. That there was no probable cause for the arrest and criminal proceeding.

51. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of KIRK HUDGINS's rights, deprived KIRK HUDGINS of his liberty when they maliciously prosecuted him and subjected him to an unlawful, illegal and excessive detention, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

52. That upon information and belief, Defendants had a policy and /or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, KIRK HUDGINS was maliciously prosecuted despite the fact that he had committed no violation of the law.

53. That upon information and belief it was the policy and /or custom of defendant CITY to inadequately hire, train, supervise, discipline and /or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.

54. That as a result of the above described policies and customs, defendant CITY, its staff, agents and employees of defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

55. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of KIRK HUDGINS's rights alleged herein.

56. That in so acting, Defendant CITY abused its power and authority as policymaker of the NYPD under the color of State and/or local law.

57. That upon information and belief, in 2013, Defendant CITY had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.

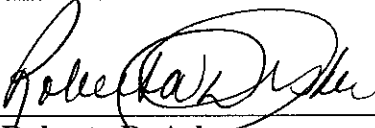
58. That by reason of the foregoing, KIRK HUDGINS suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorneys' fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

WHEREFORE, PLAINTIFF KIRK HUDGINS respectfully requests that judgment be entered:

1. Awarding PLAINTIFF KIRK HUDGINS compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding PLAINTIFF KIRK HUDGINS punitive damages in an amount to be determined by a jury;
3. Awarding PLAINTIFF KIRK HUDGINS interest from January 27, 2013 and
4. Awarding PLAINTIFF KIRK HUDGINS reasonable attorney's fees pursuant to 42 USC §1988; and

5. Granting such other and further relief as to this Court seems proper.

Dated: New York, New York
January 26, 2016



By: **Roberta D. Asher**
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX NO.

KIRK HUDGINS,

Plaintiff,

-against-

**ATTORNEY'S
VERIFICATION**

POLICE OFFICER MICHAEL YU (Shield #19716), POLICE
OFFICERS "JOHN DOES 1-8" (actual names unknown but
intended to be those officers of the 73rd Precinct who violated the
plaintiff's civil rights) THE CITY OF NEW YORK and THE NEW
YORK CITY POLICE DEPARTMENT,

Defendants.

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the
plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to
my own knowledge except as to the matters therein stated to be alleged on information and
belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the
County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's
knowledge are correspondence had with the said plaintiff, information contained in the said
plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
January 26, 2016


ROBERTA D. ASHER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KIRK HUDGINS,

Plaintiff,

-against-

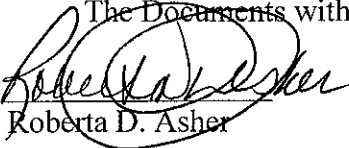
POLICE OFFICER MICHAEL YU (Shield #19716), POLICE OFFICERS "JOHN DOES 1-8"
(actual names unknown but intended to be those officers of the 73rd Precinct who violated the
plaintiff's civil rights) THE CITY OF NEW YORK and THE NEW YORK CITY POLICE
DEPARTMENT,

Defendants.

SUMMONS and VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By:


Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Fourteenth Floor

New York, New York 10038

(212) 227-5000

PLEASE TAKE NOTICE

NOTICE OF

ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the within named Court on , 2016 .

NOTICE OF

SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the of the within named Court, at , New York, on , 2016 , at
9:30 A.M.

Dated: